

demand prior to filing a lawsuit (specific to replevin) and the Motion is denied on this basis.

Defendants Teresa L. Moffitt and Theldor Farms, Inc.'s Motion for Summary Judgment or, in the Alternative, Summary Adjudication is denied in its entirety. Plaintiffs shall prepare and submit a form of order consistent with this ruling within two weeks.

2-3. 23CV00692 HINOJOSA, ISIAH V. FORD MOTOR COMPANY ET AL

EVENTS: (1) Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as Doe 1, Teichert, Inc.'s Motion to Strike Portions of Third Amended Complaint

(2) Defendant A. Teichert & Son, Inc. dba Teichert Construction, Named as Doe 1, Teichert, Inc.'s Demurrer to Third Amended Complaint

Given the issues with the rejection and re-submission of the Demurrer, as well as the incorrect hearing date and time in the Motion to Strike (10:00 a.m. is indicated rather than the correct time of 9:00 a.m.), on the Court's own motion, this matter is continued to July 1, 2026 at 9:00 a.m. No appearances are required on June 17, 2026.

4. 24CV02590 GOODLIN, SCOTT ET AL V. WILLIAMS AG SERVICES, INC ET AL

EVENT: Plaintiff Scott Goodlin's Motion to Compel Defendant Williams Ag Services, Inc. to Respond to Scott Goodlin's Special Interrogatories, Set One (1), and for Sanctions

Plaintiff Scott Goodlin ("Plaintiff" herein) has failed to include a Separate Statement in compliance with California Rules of Court Rule 3.1345(a), and the Motion is denied on that basis. See, *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893 [the Court concluded that because Plaintiffs did not comply with the requirements of a code compliant separate statement, the trial court was well within its discretion to deny the motion to compel discovery on that basis]; *St. Mary v. Superior Court* (2014) 223 Cal.App 4th 762, 778 [the Court confirmed that failure to include separate statement required by Cal. Rules of Court provided justification of court's denial of discovery motion].

In addition, the Court finds that Defendant Williams Ag Services, Inc. ("Defendant" herein) provided supplemental responses to the discovery at issue on May 5, 2026 with verifications thereafter served on May 11, 2026 [See Declaration of Amanda G. Hebesha at ¶10]. Consequently, the Court deems the Motion to Compel to be moot and it is denied on that basis as well.

Finally, the Court also addresses Defendant's argument that Butte County Local Rule 2.14(C) requires Plaintiff to participate in the informal discovery process as mandated by the Court. However, the first sentence of the Rule states: "Should any party wish to voluntarily avail themselves of the procedure, or in the event that the Court orders the parties to comply with an informal Pretrial Discovery Conference then,..." Here, no such order has been made in this case and therefore Plaintiff was not required to make such a request prior to the filing of the instant Motion.

Plaintiff's request for sanctions is denied. Counsel for the Defendant shall prepare and submit a form of order within two weeks.

5. 25CV02079 NLC CA, INC. ET AL V. WEEKS FOREST PRODUCTS INC

EVENT: Plaintiffs' Motion for Leave to File First Amended Complaint

Plaintiffs' Motion for Leave to File First Amended Complaint is unopposed and is granted and the Court will sign the form of order submitted by the Plaintiffs.

6-7. 25CV03755 CLEANRITE, INC V. WHIPPLE, TIMOTHY ET AL

EVENTS: (1) Demurrer to First Amended Cross-Complaint

(2) Motion to Strike Portions of First Amended Cross-Complaint

The Court finds that the Cross-Complainants Timothy Whipple and Shelly Whipple have sufficiently plead both their Fourth Cause of Action – Fraud and Intentional Misrepresentation and Sixth Cause of Action – Rescission and Restitution, and the Demurrer to the First Amended Cross-Complaint is overruled in its entirety.

In pleading punitive damages, a party must plead facts from which it can be reasonably inferred that the defendant acted with malice, fraud within the meaning of *Civil Code* §3294. "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages . . . Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." *Grieves v. Superior Court* (1984) 157 Cal.App.3d. 159, 166. Here, the Court finds that there are sufficient allegations of fraud and therefore the claim for punitive damages is appropriate. The Motion to Strike Portions of First Amended Cross-Complaint is denied.

Cross-Defendant Cleanrite, Inc. is ordered to file and serve its Answer to the First Amended Cross-Complaint within 20 days of this hearing. Counsel for Cross-Complainants Timothy Whipple and Shelly Whipple shall prepare and submit a form of order consistent with this ruling within two weeks.

8. 25PR00342 ESTATE OF LOPEZ, JAMES M

EVENT: Demurrer to First Amended Petition of Nancy Sandburg

While the Court acknowledges that a demurrer is generally required to be filed within 30 days after service of the complaint pursuant to *Code of Civil Procedure* §430.40, this time limit is not mandatory but permissive, as the statute uses the term "may" rather than "must". See, *McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253. Courts have discretion to consider a demurrer filed beyond the 30-day period if doing so does not affect the substantial rights of the parties. *Ibid*. As there has been no argument by Petitioner Nancy Sanburg ("Petitioner" herein) in regard to any prejudice, or impact on